

# STATE OF NEW YORK

8852--C

## IN SENATE

January 9, 2026

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the county of Putnam to lease certain lands used as parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. (a) Subject to the provisions of this act, the county of  
2 Putnam, acting by and through its governing body and upon such terms and  
3 conditions as determined by such body is hereby authorized to discontin-  
4 ue as parklands and lease at fair market value to Homeland Towers, LLC  
5 for a term not to exceed thirty years the lands more particularly  
6 described in section two of this act for the purposes of installing a  
7 160 foot cellular tower with associated equipment shelter, backup gener-  
8 ators, and telecommunications equipment. In addition, the county of  
9 Putnam, acting by and through its governing body is hereby authorized to  
10 convey an easement to Homeland Towers, LLC over certain municipally  
11 owned park lands described in section three of this act, to maintain an  
12 access road for the purposes described in section three of this act,  
13 provided that the thoroughfare shall be publicly accessible and able to  
14 be used for park purposes.

15 (b) All proceeds from such lease shall be used for capital improve-  
16 ments to existing park and recreational facilities and/or for the acqui-  
17 sition of additional park and recreational facilities, and the county of  
18 Putnam shall dedicate an amount equal to or greater than the fair market  
19 value of the easement interests being conveyed by this section for capi-  
20 tal improvements to existing park and recreational facilities and/or for  
21 the acquisition of additional park and recreational facilities.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD13376-07-6

§ 2. The parklands authorized by section one of this act to be discontinued as parklands and leased are more particularly described as follows:

LEASE AREA A -

All that tract or parcel of land being situate in the Town of Carmel, County of Putnam and State of New York; being bounded and described as follows:

Beginning at the southeast corner of said Lease Area A described herein, said point being South 88°05'38" West 1118.79 feet from the northeast corner of lands of Putnam County

(L 1903 P 263); running thence along the bounds of said Lease Area A, through the lands of Putnam County (L 1903, P 263), the following five courses and distances:

1) North 90°00'00" West 77.80 feet along the northerly bounds of a Easement Area A;

2) North 00°00'00" West 19.95 feet;

3) North 43°02'02" East 20.47 feet;

4) North 90°00'00" East 63.83 feet;

5) South 00°00'00" East 34.91 feet along the easterly bounds of a Easement Area A

to the point of beginning. Having an area of 2611.35 square feet, or 0.060 acres of land, more or less.

Bearings refer to True North.

§ 3. The easement to be conveyed by section one of this act is more particularly described as follows:

EASEMENT AREA A -

A 20-foot-wide easement for vehicular and pedestrian access to Lease Area A and for utilities to service the structures in Lease Area A along the existing roadway which runs from Hill Street to Lease Area A, said easement area being described as follows:

All that tract or parcel of land being situate in the Town of Carmel, County of Putnam and State of New York; being bounded and described as follows:

Beginning at the southeast corner of said Lease Area A described herein, said point being South 88°05'38" West 1118.79 feet from the northeast corner of lands of Putnam County

(L 1903 P 263); running thence along the bounds of said Easement Area A, through the lands of Putnam County (L 1903, P 263), the following thirty courses and distances:

1) North 00°00'00" West 34.91 feet along the easterly bounds of Lease Area A;

2) North 90°00'00" East 20.00 feet;

3) South 00°00'00" East 30.14 feet;

4) South 26°50'52" East 41.26 feet;

5) South 00°00'00" East 84.64 feet;

6) South 12°11'45" East 66.94 feet;

7) South 89°43'14" East 32.02 feet;

8) North 89°00'03" East 50.56 feet;

9) North 83°51'59" East 158.55 feet;

10) North 79°22'14" East 70.82 feet;

11) North 76°52'09" East 68.75 feet;

12) North 75°07'10" East 49.73 feet;

13) on a curve to the right, having a radius of 460.00', an arc length of 196.02', and a delta angle of 24°24'55";

14) South 80°27'55" East 142.07 feet;

15) South 81°12'58" East 108.14 feet;

1 16) South 79°06'03" East 79.26 feet to a point on the westerly bounds of  
2 Hill Street;  
3 17) South 29°10'31" West 21.06 feet along the westerly bounds of Hill  
4 Street;  
5 18) North 79°06'03" West 72.29 feet  
6 19) North 81°12'58" West 107.90 feet;  
7 20) North 80°27'55" West 142.20 feet;  
8 21) thence with a curve to the left, having a radius of 440.00', an arc  
9 length of 187.50', and a delta angle of 24°24'55";  
10 22) South 75°07'10" West 50.03 feet;  
11 23) South 76°52'09" West 69.49 feet;  
12 24) South 79°22'14" West 72.04 feet;  
13 25) South 83°51'59" West 160.24 feet;  
14 26) South 89°00'03" West 51.68 feet;  
15 27) North 89°43'14" West 48.31 feet;  
16 28) North 12°11'45" West 85.13 feet;  
17 29) North 00°00'00" West 82.00 feet;  
18 30) North 26°50'52" West 41.26 feet;  
19 31) North 26°50'52" West 18.84 feet;  
20 32) North 90°00'00" West 87.92 feet;  
21 33) North 00°00'00" West 20.00 feet;  
22 34) North 90°00'00" East 77.80 feet; along the southerly bounds of Lease  
23 Area A  
24 to the point of beginning. Having an area of 25495.69 square feet, or  
25 0.585 acres of land, more or less.

26 Bearings refer to True North.

27 § 4. Should the leased lands described in section two of this act  
28 cease to be used for the purposes described in section one of this act,  
29 the lease shall terminate and those lands shall revert to the county of  
30 Putnam for public park and recreational purposes and the easement  
31 described in section three of this act for access shall also revert and  
32 be extinguished. At the time of such reversion, the removal of such  
33 cellular tower, associated equipment shelter, backup generators, and  
34 telecommunications equipment shall take place and the property shall be  
35 returned to its previous state, consistent with park and recreational  
36 purposes.

37 § 5. In the event that the county of Putnam received any funding  
38 support or assistance from the federal government for the purchase,  
39 maintenance or improvement of the parklands set forth in sections two  
40 and three of this act, the discontinuance and alienation of such park-  
41 land authorized by the provisions of this act shall not occur until  
42 Putnam county has complied with any federal requirements pertaining to  
43 the alienation or conversion of parklands, including satisfying the  
44 secretary of the interior that the alienation or conversion complies  
45 with all conditions which the secretary of the interior deems necessary  
46 to assure the substitution of other lands shall be equivalent in fair  
47 market value and usefulness to the lands being alienated or converted.

48 § 6. This act shall take effect immediately.